



DATA RETENTION & ARCHIVAL POLICY

Name of Policy	Data Retention & Archival Policy
Description of Policy	Data Retention & Archival Policy
Policy Number	DATA_RA/001
Policy applies to	NSE Clearing Ltd
Policy status	Review of Policy

Approval authority	Board
Policy Owner	Operations Risk

Last Approval date	- (Administered at Group level)
Effective date	October 21, 2023
Frequency of review and approval	Annual

Revision History:

Version	Revision Date	Nature and Reasons of Change	Approved by
1.0	October 21, 2023	Creation of the document	Board

Contents

1. PURPOSE AND SCOPE	3
1.1 Introduction	3
1.2 Objectives	3
2. KEY DEFINITIONS.....	3
3. ROLES & RESPONSIBILITIES	7
3.1 Applicability and Coverage	7
3.2 Responsibility	7
3.3 Enforcement and Oversight	7
4. REVIEW.....	8
5. RECORD RETENTION	8
6. DATA ARCHIVAL.....	11
7. RECORD RETRIEVAL	13
8. DESTRUCTION OF DATA.....	13
8.1 Document destruction guidelines	14
9. EXCEPTION APPROVAL MATRIX.....	14
10. REFERENCES	15

1. PURPOSE AND SCOPE

1.1 Introduction

NSE Clearing Ltd.(NCL) believes that documents and records, generated in the course of its business, form an integral and significant part of the organization. These records enable NCL to hold itself accountable to its policies as well as towards the regulators, members, clients, stakeholders, and partners and can be considered as a basic tool of administration. These records also support management oversight in the conduct of audits, reviews, and reports. Considering the importance of records and information handled at NCL, there is a crucial need to design a policy at the organization level to ensure efficient management of records/ data/ information, whether electronic or physical. This policy is prepared to lay down guidelines on data retention, data archival, data retrieval and data destruction (hereinafter, collectively referred to as 'data management') which will be applicable to all departments functioning under NSE Clearing Ltd..

1.2 Objectives

The purpose of this policy is to introduce data management practices to ensure uniformity in the manner in which every function addresses record management as well as to ensure adequate compliance with all applicable regulations. This policy establishes retention and archival schedules for various data categories defined in this policy with an objective to ensure conformity in the schedules of records which are common in nature in the area of policy/processes notes, business development and business operations, created by individual departments within NCL.

This policy is intended to define the organization's responsibility on preservation of documents and to provide guidance to the employees in making decisions on data management. This policy is framed for the purpose of systematic identification, categorization, maintenance, retention and destruction of documents received or created in the normal exchange business. This policy defines guidelines on determining record category, how long should a document be preserved and in what form, and how and when should certain documents be destroyed.

2. KEY DEFINITIONS

1. "Applicable law" means any law, statutory rules & regulations or standards applicable to the Company, under which any guideline/ provision with regard to the preservation of the documents has been prescribed.
2. "Archival" means the process of moving documents which are no longer used actively to a separate storage location after the end of retention period for long term retention.
3. "Archival schedule" means the time frame for which the documents are to be archived. Archival schedule will commence after the end of the retention schedule.
4. "Board" means the Board of Directors of the Company.
5. "Company" means NSE Clearing Ltd.(NCL)
6. "Current document(s)" means any document that still has an ongoing relevance with reference to any ongoing contract, litigation, proceedings, complaint, dispute, or any like matter.
7. "Data categories" means types of documents by which the nature of the document can be identified. Refer 'Data/ Record Categories' stated below for definitions of each data category.
8. "Document(s)" refers to notes, agreements, notices, advertisements, requisitions, orders, declarations,

forms, correspondence, minutes, registers and or any other record (including those required under or in compliance with the requirements of any “Applicable law”) maintained on paper or in electronic form and does not include multiple or identical copies.

9. “Electronic form” means maintenance of documents in any contemporaneous electronic device such as computer, laptop, compact disc, floppy disc, space on electronic cloud or any other form of storage and retrieval device, considered feasible, whether or not the same is in possession or control of the Company.
10. “Head of Department (HoD)/ Function Head” – individuals or group of individuals, heading or jointly heading, any function, business vertical or department in the organization including, individuals appointed as acting heads
11. “Maintenance” means keeping documents, either physically or in electronic form.
12. “Personal data” means any information relating to an identified or identifiable natural person, who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, and identification number, location data, and online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.
13. “Preservation” means to keep in good order and to prevent from being altered, damaged or destroyed.
14. “Retention” means preserving the documents in the live environment for active use of the Company, which are readily accessible by those who are authorized to access.
15. “Retention schedule” means the time frame for which the documents are to be retained.

Data/ Record Categories

S. No.	Data/Record Categories	Brief Description
1	Accounting records	All records and documents pertaining to accounting entries of income, capital and revenue expense, asset booking, investments, etc. Records include payment records, approval notes, purchase orders, invoices, journal vouchers and any other supporting document. Records also include financial statements, director's reports, auditor's certificate on financial statements, all accounting and audit records/ annexures/ working prepared for final accounting and annual reports
2	Agreements/ Work orders/ Collateral documents	Agreements with vendors, clients/ customers as well as inter- company agreements across all departments. Records include contracts, service level agreements, work orders, undertakings, Memorandum of Understanding (MoUs), member collateral documents and NCL membership certificates with any other domestic/ global body
3	Approval notes	Records that establish authorization of an activity by a designated authority (including approvals taken on green/ blue notes). Records also include approval notes received from the regulators, Government authorities, etc.
4	Audit records	All records submitted and accepted for audits other than statutory and tax audits, including but not limited to records (including electronic records) which are created, sent, or received in connection with an audit or review and contain conclusions, opinions, analysis, or financial data and other documents relating to such an audit or review, including audit reports and audit plans, which is conducted by auditors
5	Board & board sub-committee documents	Documents prepared for all committees like notices, agendas, minutes, board resolutions, attendance registers and any other record created to comply with secretarial standards

S. No.	Data/Record Categories	Brief Description
6	Closed Circuit Television (CCTV) records	Records generated from the CCTVs installed for monitoring of activities carried out across all premises/ facilities of the organisation
7	Change management	Records generated at the time of facilitating change in any business process, product or application including all records created during identification, implementation, monitoring and review activities
8	Charters of committees	Document containing details of a particular committee, including but not limited to, composition, date of formation/ reconstitution, scope of committees, quorum and role of committee.
9	Company incorporation and secretarial records	Documents required to be maintained as per the Companies Act, 2013 and applicable Secretarial Standards
10	Corporate social responsibility (CSR)	All records of CSR projects, including but not limited to, project details, fund requirement letters, progress reports, Non-Government Organization (NGO) selection documents etc. Records include statements of budgets allocated, funds/ amounts spent along with impact assessment document of the projects
11	Customer/ client/ investor queries and interaction	Customer-care/ call-center / helpdesk interactions and records including voice call records. Records also include responses or resolution of queries, including any document/ data shared as part of the resolution
12	Customer service requests records	Any Service Requests raised by customer for availing various services provided by the organisation including changes in the existing services
13	Email records	Any messages created, sent or received within an email system that are required by the Organization to control, support, or to carry out operations, to make decisions, document the delivery of programs or to account for activities
14	Employee records	Records submitted by employees at the time of joining the company, including documents prepared by recruitment and talent teams (for e.g. background verification reports, interview assessment notes, salary structures, approval notes, etc.) Records shall also include annual performance notes and appraisal documents including letters of bonus issued
15	Facility access and visitor records	All records created/ generated while accessing any facility of the organisation by any employee or any visitor of the facility
16	Information technology and security	Information technology logs comprising Database Administrator (DBA)/ privilege user logs, transaction logs, user activity logs, system logs, network activity logs, server logs including server start-up, load and shut down log (excluding those logs that may affects latency), database logs, system administrator, DBA activity logs, security logs and error logs, etc.
17	Legal records	All records pertaining to cases filed by or defended by NCL in the court of law, Documents related to Intellectual Property Rights, Power of Attorney, Arbitration, Investor Grievance Redressal, etc.

S. No.	Data/Record Categories	Brief Description
18	Marketing collaterals and related records	All material created for sales and marketing purposes
19	Media communications and related documents	All records created for press release, social media advertisement, announcements (other than by way of circulars) or any other document created for the public at large
20	Member Records	
	20(a) Member/ participant empanelment records	All documents obtained from members/ participants at the time of empanelment, including clearing members and custodians or members registered on any special service platform (web-based or otherwise), for e.g. CBRICS etc.
	20(b) Member compliance records	All documents obtained from members as part of ongoing compliance. These include records generated internally for monitoring like member inspection or investigation reports and other documents
	20(c) Member correspondence	Other communications made to the member for day-to-day activities, including all reports related to trade, orders, collateral, settlement data shared with the members throughout a day/week/month/quarter
21	MIS and management reports	Reports prepared for internal monitoring purposes, MIS shared with HoDs, including any reports shared for inter-departmental use. These include performance reports against identified KRAs of the department and pre-defined queries to extract data for reporting purpose
22	NCL Circulars	Circulars issued by the NCL
23	Policies and guiding notes	All records that define and document policies, governing processes of a function including framework documents
24	Product notes	All records that describe the nature, feature, operational mechanism or framework of products developed. Records include consultation and application notes prepared for the regulators
25	Records created from BAU (business as usual) activities	Any records/ data/ documents generated by virtue of undertaking usual activities e.g. Sales records, including sales pitch records, business transaction data, etc.
27	Records for managing human resources	Documents include all records maintained for recruitment, training, talent management, employee initiatives, etc. All records other than those associated with individual hired employee
28	Records related to facility management (Administration)	Records generated by the Administration function
29	Records related to premises and maintenance	Records generated by the Premises function, other than those forming part of documents categorized in category 27 - Records related to facility management (Administration)
30	SEBI/ RBI submissions & correspondences	Compliance reports submitted to, communication made to and received from SEBI, RBI or any other regulator, as the case may be.

S. No.	Data/Record Categories	Brief Description
31	Service Level Agreements (SLA)	Inter-departmental agreements containing details, including but not limited to, turn-around-time, metrics, agreed service levels, escalation grid etc.
32	SOPs and Process notes	All records that document processes or activities undertaken by functions and departments
33	Taxation records	All records and documents pertaining to income tax compliance, including but not limited to tax audit reports and other annexures, assessment notes, notices
36	User manuals/ user guides for systems	A technical communication document intended to give assistance/ guidance to users of a particular system

3. ROLES & RESPONSIBILITIES

3.1 Applicability and Coverage

The policy will be applicable to all employees of NSE Clearing Ltd.(NCL) . All employees are responsible to maintain and preserve the documents and records that are generated in the activities undertaken, as per guidelines and processes laid down in this policy.

3.2 Responsibility

Every department is responsible for and owns the document it creates, uses, stores, processes or destroys. Departments shall create and maintain a comprehensive 'List of Documents' (as specified in the Annexure-I to this policy) that they currently hold, corresponding to the data/ record categories defined in this policy. Departments shall identify all forms of personal data that they currently hold and indicate the same in the 'List of Documents' (Annexure- I). HoDs/ Function Heads shall ensure that documents of their departments are categorized as per data categories defined in Section 2 and necessary steps are taken to apply data management schedules.

3.3 Enforcement and Oversight

The responsibility of enforcing the requirements of this policy is with respective Head of Department (HoD)/ Function Head. The 'List of Documents' (Annexure- I) shall be approved by respective HoD/ Function Head and reviewed by Chief Risk Officer.

Operations risk team shall seek confirmation from the respective departments on data management requirements at yearly intervals which shall include review of the annexure (covering list of documents) applicable to the department for record management purpose. Operations Risk team shall also provide necessary guidance to all other departments/ functions to enable seamless implementation and adoption of the most appropriate data management schedule as established under this policy.

As part of department internal audit, compliance to the Policy shall be verified.

4. REVIEW

The Policy shall be reviewed on an annual basis. Operations Riskteam shall liaise with respective departments to discuss any inputs/ material changes to the data management schedules and to understand issues or hindrances, if any, in adopting the defined practices, as part of review.

Any revision to the 'List of Documents' (Annexure- I) held by each department, including any addition/ deletion of any type of documents will need to be approved by the HoD/ Function Head of the concerned department as well as by the Operations Risk. These approvals may then be consolidated at the organization level and ratified during the annual review of the policy.

Any deviation to the Policy identified during internal audit shall be presented to the Management Committee and Audit Committee of the Board. Any risk arising out of deviations/ non- compliance shall also be presented to the Risk Committee of the Board.

General Guiding Principles

Notwithstanding anything contained in this policy, the following guidelines on record management shall be followed at all times

- All original agreements with vendors, inter-company agreements or any strategic agreements entered by the Company will have to be preserved in safe vaults in the premises of the Company.
- All company statutory records required to be maintained under the Companies Act 2013 to be maintained and preserved for a time frame prescribed in applicable Secretarial Standards. Documents listed in Secretarial Standard 1 and the proposed Secretarial Standard 4 will be preserved in the manner prescribed in these standards.
- Any changes in the regulations, applicable laws or any guidelines issued by the regulator with respect to preservation of records will prevail over and above this policy. Such changes shall be tracked and updated in this policy at the time of review.
- HoDs/ Function Heads may issue a 'hold' request to the department record owner on any documents relating to potential or actual litigation, arbitration or other claims, demands, disputes or regulatory actions. All such requests shall be intimated to Operations Risk by the HoD/ Function Head, within 7 days of such requests. In all such cases, the department record owner shall ensure that documents in question are preserved, even after the end of the retention and archival schedule, in a manner which is usable for the above requirement. The document record owner must update the 'On Hold' flag in the department's 'List of Documents' (Annexure- I) for such documents.
- Each employee shall be responsible for returning data in their possession or control to NCL upon separation or retirement.

5. RECORD RETENTION

Retention is defined as the maintenance of documents in a live environment which can be accessed by an authorized user in the ordinary course of business. Based on certain aspects such as the need for documents to resolve member queries, inter-department requests and responses to on-going audit requirements, the following retention schedule and mode of retention is defined –

Data Retention Buckets	Retention period	Additional Guidelines
A	Permanent	-
B	5 years	For active customers, Archival will not be applicable and data will continue to be retained in the live environment. For deactivated customers, retention period is 5 years from the date of deactivation
C	3 years	-
D	2 years	For current employees, archival will not be applicable and data will continue to be retained in the live environment. Post termination of employment, retention period is 2 years from the date of termination
E	1 year from the expiry of document	-
F	1 year from the date on which the dispute is closed	-
G	2 Months	-
H	If no open dispute/ litigation – 45 days	-
	In all other cases (open dispute/ litigation)- 1 year from the date on which the dispute is closed	

Mode of Retention	
Electronic (E)	Records to be retained in electronic form. These records may be stored on shared drives with access to only authorized individual/ group of individuals.
Physical (P)	Record to be retained in physical form. These records may be kept in file cabinets or any other storage units assigned to each department with proper labelling so as to enable quick identification of the records.
Original Form (O)	Records to be retained in the original form in which they were created or used i.e. either electronic or physical.

Every department shall maintain a comprehensive 'List of Documents' (Annexure- I) that they hold, corresponding to each of the below data/ record categories. Further, every department, based on the identified category of the document, will retain the documents as per the below mentioned indicative retention schedule:

A	Permanent	D	2 years	G	2 months
B	5 years	E	1 year from expiry of document	H	If no open dispute/ litigation – 45 days
C	3 years	F	1 year from date of dispute, if any, is closed		In all other cases (open dispute/ litigation)- 1 year from the date on

				which the dispute is closed
--	--	--	--	-----------------------------

(E) Electronic	(P) Physical	(O) Original Form
----------------	--------------	-------------------

S. No.	Data/Record Categories	Retention Schedule (Mode of Retention)
1	Accounting records	A(E), A(O), B(E), B(O), C(E), C(O), E(O)
2	Agreements/Work Orders/Collateral documents	A(O), B(E), C(E), E(E), E(O)
3	Approval Notes	D(O)
4	Audit Records	C(E)
5	Board & board sub-committee documents	A(O), B(O), C(E), C(O)
6	CCTV records	H(E)
7	Change management	A(E), D(E)
8	Charters of committees	A(E)
9	Company incorporation and secretarial records	A(P), A(O)
10	Corporate Social Responsibility records	C(E), C(O)
11	Customer/ client/ investor queries and interaction	C(E), C(O)
12	Customer service request records	D(O)
13	Email records	G(E)
14	Employee records	A(O), D(O)
15	Facility access and visitor records	B(O), D(O)
16	Information Technology and Security	C(E)
17	Legal records	A(O), C(O), F(O)
18	Marketing Collaterals and related records	B(E), E(E), E(P)
19	Media communications and related documents	C(E), C(O)
20	Member Records	
	20(a) Member/ participant empanelment records	B(E), B(O)
	20(b) Member compliance records	C(E), C(O), D(E), D(O)
	20(c) Member correspondence	B(O), C(E), C(O)
21	MIS and management reports	A(E), B(O), C(E)
22	NCL Circulars	A(E)
23	Policies and guiding notes	A(E)
24	Product Notes	A(E)
25	Records created from BAU (business as usual) activities	A(E), A(O), A(P), B(E), B(O), C(E), D(E), D(O), D(P), E(E)
26	Records of Listed Companies	
	26(a) Records for new/further issues (listing)	B(E), B(O)
	26(b) Records for ongoing compliance (listing)	C(O)
	26(c) Company Correspondence (listing)	C(E), C(O)
27	Records for managing human resources	A(O), D(E), D(O)

S. No.	Data/Record Categories	Retention Schedule (Mode of Retention)
28	Records related to facility management (Administration)	D(E), D(O)
29	Records related to premises and maintenance	D(O)
30	SEBI/RBI submissions & correspondences	A(E), A(O), C(E), C(O), C(P)
31	Service Level Agreements (SLA)	A(E)
32	SOPs and Process Notes	A(E)
33	Taxation records	A(E), A(O)
34	User manuals/ user guides for systems	A(E)

6. DATA ARCHIVAL

Archiving is defined as secured storage of data/ documents, such that the same is rendered inaccessible by authorized users in the ordinary course of business, but which can be retrieved by an administrator designated by the HoD/ Function Head for the document in question. Based on certain aspects such as compliance with statutory and regulatory requirements, responses to inspections from regulator and availability of documents for any statutory assessments, the following archival schedule and mode of archival is defined:

Data archival buckets	Archival period	Additional guideline
I	Permanent	-
II	10 years	-
III	8 years	Deactivated customer records – archival period will be 8 years after retention period is over
IV	6 years	-
V	5 years	• <i>Agreements/ Work Orders/ Collateral documents</i> – 5 years after expiry of the document • <i>Employee Records</i> – 5 years after retention period is over • <i>Legal Records</i> – 5 years after the dispute is closed • <i>Audit reports</i>- 5 years from the end of the fiscal period in which the audit or review was concluded

Mode of Archival	
Electronic (E)	Records to be archived in electronic form. These records may be stored on assigned servers or on tapes as per rules and guidelines issued by the technology department.
Physical (P)	Record to be archived in physical form. The records may be archived in the premises or vendor premises.
Original Form (O)	Records to be retained in the original form in which they were created or used i.e. either electronic or physical.

Every department will need to maintain a comprehensive 'List of Documents' (Annexure- I) that they hold,

corresponding to each of the below data/ record categories. Further, every department, based on the identified category of the document, will archive the documents as per the below mentioned indicative archival schedule:

I	Permanent	III	8 years	V	5 years
II	10 years	IV	6 years		

(E) Electronic	(P) Physical	(O) Original Form
----------------	--------------	-------------------

S. No.	Data/Record Categories	Archival Schedule (Mode of Archival)
1	Accounting records	I(E), III(E), V(E)
2	Agreements/ Work Orders/ Collateral documents	I(E), V(E), V(O)
3	Approval Notes	I(O)
4	Audit Records	V(E)
5	Board & board sub-committee documents	I(E), III(E)
6	CCTV Records	NA
7	Change management	II(E)
8	Charters of committees	NA
9	Company incorporation and secretarial records	NA
10	Corporate Social Responsibility	I(E), III(E)
11	Customer/ client/ investor queries and interaction	III(E), III(O), V(E)
12	Customer service request records	III(E)
13	Email records	I(E)
14	Employee records	I(E), V(E)
15	Facility access and visitor records	III(O), V(O)
16	Information Technology and Security	II(E), IV(E)
17	Legal records	III(O), V(O)
18	Marketing Collaterals and related records	I(E), III(E), V(E)
19	Media communications and related documents	III(E)
20	Member Records	
	20(a) Member/ participant empanelment records	III(E), III(O)
	20(b) Member compliance records	I(E), III(E), V(E)
	20(c) Member correspondence	III(E), V(E)
21	MIS and management reports	I(E), III(E), V(E)
22	NSE Circulars	NA
23	Policies and guiding notes	NA
24	Product Notes	NA
25	Records created from BAU activities	I(E), I(O), III(E), III(O), IV(E), V(E)

S. No.	Data/Record Categories	Archival Schedule (Mode of Archival)
26	Records of listed companies	
	26(a) Records for new/further issues (listing)	I(E), II(E), III(E)
	26(b) Records for ongoing compliance (listing)	III(E)
	26(c) Company Correspondence (listing)	I(E), III(E), V(E)
27	Records for managing human resources	I(E), III(E), V(E)
28	Records related to facility management (Administration)	V(E), V(O)
29	Records related to premises and maintenance	I(O), V(O)
30	SEBI/ RBI submissions & correspondences	I(E), I(P), V(E)
31	Service Level Agreements (SLA)	NA
32	SOPs and Process notes	NA
33	Taxation records	NA
34	User manuals/ user guides for system	NA

Departments shall ensure that documents are archived within 30 days from end of the retention period. Paper records shall be archived in secured storage onsite or secured offsite location with clear labelling. Electronic records shall be archived in a format which is appropriate to secure the confidentiality, integrity and accessibility of data. Departments shall ensure compliance with the appropriate data classification guidelines throughout the archival period.

7. RECORD RETRIEVAL

Request for retrieval of archived data by any employee shall be approved by the respective HoD/ Function Head. The concerned document shall be made available as per the Service Level Agreement (SLA) and Turn-around Time (TAT) defined for the purpose.

8. DESTRUCTION OF DATA

Destruction is defined as physical or technical destruction, sufficient to render the information contained in the document irretrievable by ordinary commercially available means. Once records have been archived for the applicable period set forth in this policy, the same shall be prepared for destruction, subject to request from the department and necessary approval as stated in the data destruction matrix given below:

Reason of destruction	Requestor	Approver	Authorizer
Conversion of physical record to electronic at the start, in between or end of the retention period	Any employee	HoD/ Function Head	Chief Risk Officer
Permanent destruction of records at the end of archival period - electronic records	Any employee	HoD/ Function Head	Chief Risk Officer

Permanent destruction of records at the end of archival period - physical records	Any employee	HoD/ Function Head	Chief Risk Officer
---	--------------	--------------------------	-----------------------

The respective department shall ensure that the documents are destroyed within 30 days from end of archival period.

8.1 Document destruction guidelines

- NSE shall enforce approved destruction practices, appropriate for each type of information archived, whether in physical storage media such as CD-ROMs, DVDs, backup tapes, hard drives, mobile devices, portable drives or in database records or backup files. IT hardware, including servers, desktops and other IT peripherals, network devices, optical media like CDs/ DVDs, magnetic tape media, printer consumables, etc. may be physically damaged or degaussed and handed over to concerned E-waste vendors.
- Physical documents should be appropriately shredded using secured, locked consoles from which waste shall be periodically picked up by security screened personnel for disposal. No record shall be allowed to be taken outside the premises of the Company/ offsite location without being torn into small shreds.
- The details of the documents destroyed by the department shall be recorded in a register or a report to be maintained by the respective department, wherein brief particulars of the documents destroyed shall be entered, including but not limited to the following details:
 - Name of Record
 - Form of document
 - Particulars of the document
 - Month and Year in which record was created
 - Date of Destruction
 - Mode of Destruction
 - Requestor and request date
 - Approver and approval date
 - Authorizer and authorization date

9. EXCEPTION APPROVAL MATRIX

Where any decision or proposition with respect to data maintenance, results in retention/ archival schedules not being in conformity with the schedule defined in this policy, the same shall be approved as under:

Exception	Approver
Retention/Archival schedule for period lower than defined	HoD + Chief Risk Officer
Addition of new data category and schedules	HoD/ Function Head + Chief Risk Officer
Conversion of the form of the document from physical to electronic or vice-versa at the start in between/ at the end of retention schedule	HoD/ Function Heads



HoDs/ Function Heads shall have the justification to modify any data category or retention/ archival schedule and document and maintain the same along with the required approval.

HoDs/ Function Heads shall ensure, in the case there are existing documented operating procedures on data management, that such change in retention schedule is documented and circulated in the department

Change in category of a document, thereby resulting in a change in the retention/ archival schedule shall be approved in the manner stated above.

10. REFERENCES

- Section 128 and Section 7(4) of Companies Act, 2013
- Clauses 8.1, 8.2 and 4.1.6 of Secretarial Standard 1
- SEBI circular on Maintenance and Preservation of Records (SEBI/HO/CDMRD/DMP/CIR/P/2016/74 dated August 30, 2016)
- SEBI master circular (SEBI/HO/MRD/DP/CIR/P/117 dated October 17, 2019) section 5.3.1
- Section 44AA, Rule 6F of Income Tax Act
- Guidance taken from Regulation 9 of LODR
- Guidance taken from Limitation Act, 1963
- Guidance taken from section 65B of Indian Evidence Act, 1872
- Guidance taken from Section 4 of Information Technology Act, 2000
- Recommendations of Society of Human Resource Management
- Guidance taken from The Federal Reserve Bank policies applicable to its supervisory and regulatory functions
- Guidance taken from Section 12 of Prevention of Money Laundering Act, 2002
- Guidance taken from CBSE Examination Bye-Laws 2012
- Guidance taken from Guidelines for Preparation of Records Retention Schedules by National Archives of India
- Guidance taken from similar guidelines issued by The Comptroller & Auditor General Of India (CAG); Department of Administrative Reforms and Public Grievances (DARPG), Government of India; Central Vigilance Commission, Government of India; Ministry of Finance, Government of India; Ministry of Labor & Employment, Directorate General of Employment & Training, Government of India; Ministry of Finance and Company Affairs, Government of India;
- Guidance taken from EU General Data Protection Regulation (GDPR)
- Securities Contracts (Regulation) (Stock Exchanges and Clearing Corporations) Regulations, 2018 [Last amended on March 02, 2023]